

END USER LICENSE AGREEMENT

QEEG.com.au

PROVISIONAL — FOR TESTING USE — NOT YET REVIEWED BY COUNSEL

Licensor	Applied Neurosciences Pty Ltd, trading as QEEG.com.au, Victoria, Australia
Licensee	Each practitioner who creates a QEEG.com.au account, referred to throughout as “you”
Status	Provisional — drafted for use during the platform's testing phase specifically, not as a permanent substitute for a lawyer-drafted EULA. Version 1.0-provisional.
Replacement mechanism	This document is designed to be replaced by a lawyer-produced version without any code change — see Section 1.

1. Status of This Document

This is a provisional EULA, drafted for use while QEEG.com.au is in testing, not a finished or lawyer-reviewed agreement. It is designed to be replaced entirely once a qualified lawyer produces a final version.

 **NEEDS LAWYER INPUT** — This whole document needs review before the platform leaves testing — not just the flagged clauses within it.

As with the Data Processing Agreement drafted for this project, every clause here — not only the ones specifically flagged below — needs a lawyer's review before this governs real practitioners outside a testing context.

1.1 How this gets replaced without a code change

The website serves this agreement as a standalone PDF file at a fixed location (legal/eula.pdf), embedded into eula.html by reference rather than typed directly into the page's HTML. Replacing what practitioners see requires only replacing that PDF file at that same path with the lawyer-finalised version — the webpage itself, the signup flow, and the acceptance-recording logic do not need to change, since none of them contain this document's actual text. See the Developer Specification's companion note on this mechanism for exactly which file to replace and where it lives.

2. License Grant

Subject to your compliance with this Agreement, the Terms of Service, and the Data Processing Agreement, Applied Neurosciences Pty Ltd grants you a limited, non-exclusive, non-transferable, revocable licence to access and use the QEEG.com.au platform for the purpose of submitting QEEG, TOVA, and symptom checklist data and receiving generated correlation reports, for use in your own professional practice.

This licence does not grant you any right to:

- copy, modify, reverse engineer, decompile, or create derivative works of the platform's software, correlation engine, or knowledge base;
- resell, sublicense, or provide the Service to a third party on your own account, as opposed to using it for your own patients in your own practice;
- use the Service to build a competing product;
- remove or obscure any proprietary notice on a generated report or on the platform itself.

3. Intellectual Property

The platform, its correlation engine, its curated knowledge base, and its underlying software remain the property of Applied Neurosciences Pty Ltd. A generated report is provided to you for your own clinical use; this Agreement does not transfer ownership of the underlying knowledge base or correlation methodology used to produce it.

⚠️ NEEDS LAWYER INPUT — Confirm who owns a generated report itself — the practitioner who commissioned it, or Applied Neurosciences Pty Ltd with a licence granted to the practitioner to use it.

This matters in practice: can a practitioner include a report, or excerpts from it, in a patient's own medical record or in correspondence with another treating clinician without separate permission? The answer should be stated explicitly, not left implied.

4. Testing-Phase-Specific Terms

While this provisional Agreement is in effect, in addition to the terms above, the following apply specifically because the Service is in a testing phase:

- The Service may change, be interrupted, or be discontinued without notice during testing.
- Applied Neurosciences Pty Ltd makes no availability or uptime commitment during this phase.
- You should not rely on the Service as your sole means of generating a report for a genuinely time-sensitive clinical need during testing.
- Feedback you provide about the Service during testing may be used by Applied Neurosciences Pty Ltd to improve the Service without any obligation to you.

5. Scope and International Use

This Agreement applies to every practitioner who creates a QEEG.com.au account, worldwide — gated by NeuroGuide QEEG and T.O.V.A. compatibility, not by geography (Developer Specification Section 2.4). As with the Data Processing Agreement, not every clause below binds every practitioner identically:

- Sections 1–4 and 9–12 are general licensing terms and apply to every practitioner regardless of location.
- Sections 6, 7, and 8 address specific jurisdictions where local consumer-protection or contract law may affect how a software licence agreement is enforced.

6. Australia

This Agreement is governed by the law of Victoria, Australia. Nothing in this Agreement excludes, restricts, or modifies any consumer guarantee, right, or remedy conferred on you by the Australian Consumer Law that cannot lawfully be excluded.

⚠ NEEDS LAWYER INPUT — Confirm whether the Australian Consumer Law's consumer guarantees apply to this Service at all — they generally apply to goods and services acquired by consumers, and a practitioner acquiring this Service for their professional practice may or may not fall within that definition depending on the circumstances.

7. European Union / United Kingdom

If you are located in the EU or UK, nothing in this Agreement limits any right you have under mandatory consumer or contract law in your jurisdiction that cannot lawfully be excluded by agreement. The separate Data Processing Agreement, not this EULA, governs the transfer and handling of personal data from the EU/UK to our Australian infrastructure.

8. United States and Elsewhere

If you are located in the United States or in a jurisdiction not named above, this Agreement applies as written, without a jurisdiction-specific variation — unlike the Terms of Service and Data Processing Agreement, this provisional EULA does not yet include specific accommodations for every jurisdiction. Contact us if a term below conflicts with a mandatory law in your jurisdiction.

⚠ NEEDS LAWYER INPUT — Decide whether US-specific terms are needed here (e.g. an arbitration clause, a class-action waiver, state-specific consumer protection carve-outs) — not addressed in this provisional draft.

9. Warranty Disclaimer

The Service, including every generated report, is provided “as is”. Applied Neurosciences Pty Ltd does not warrant that the Service will be uninterrupted or error-free, particularly during the testing phase (Section 4). A generated report states research correlations only; it is never a diagnosis and never a treatment recommendation (Terms of Service, and every report's own AI-generation disclaimer).

 **NEEDS LAWYER INPUT** — Standard warranty-disclaimer boilerplate is missing here (merchantability, fitness for purpose, non-infringement) — add the specific language a lawyer considers necessary for an Australian-governed software licence.

10. Limitation of Liability

Liability under this Agreement is addressed in the Terms of Service.

 **NEEDS LAWYER INPUT** — As with the Terms of Service and the Data Processing Agreement, liability terms are a placeholder here — confirm all three documents state a single, consistent liability position rather than three separately-drafted (and potentially conflicting) ones.

11. Term and Termination

This licence takes effect when you create your QEEG.com.au account and continues until your account is closed, by you or by Applied Neurosciences Pty Ltd. Applied Neurosciences Pty Ltd may suspend or terminate your account at any time during the testing phase (Section 4) without notice.

12. Governing Law

This Agreement is governed by the law of Victoria, Australia, without regard to conflict of law principles, subject to Sections 6–8 above for practitioners in other jurisdictions.

Acceptance

Acceptance of this Agreement is recorded electronically when you check the corresponding box at account creation — see the Developer Specification's account-creation section for how this is recorded and versioned. No signature block is required for electronic acceptance; one is included below only for a circumstance where a physical or separately countersigned copy is needed.

For and on behalf of Applied Neurosciences Pty Ltd:

Name: _____

Title: _____

Date: _____